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Department of Forensic Science

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Declaration

Hansi Nirosha Ranaweera, hereby certify that the material, which submitted in this assignment, is entirely my own work and has not been submitted for any academic assessment other than as part fulfillment of the assessment procedure for the Diploma in Forensic medicine and Toxicology. I further certify that the best of my knowledge this assignment is done according to the guidelines of 7th module in – 2st semester.

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Laws Related to Sexual Offences in Sri Lanka

Introduction

Sexual offences are serious crimes that violate the bodily autonomy, dignity, and fundamental rights of individuals. In Sri Lanka, sexual offences are mainly governed by the Penal Code of Sri Lanka, which has been amended several times to strengthen protections against sexual violence. Important amendments were introduced through the Penal Code (Amendment) Act No. 22 of 1995, which modernized many provisions related to rape, sexual harassment, and offences against children.

sexual offences have both legal and medico-legal significance, as victims often require medical examination, forensic evidence collection, and psychological support. These offences include rape, statutory rape, sexual harassment, grave sexual abuse, incest, and offences related to child exploitation.

This assignment discusses the major sexual offences defined under Sri Lankan law, the legal provisions governing them, and their medico-legal implications.

Figure 1 Sexual Offences

Legal Framework Governing Sexual Offences in Sri Lanka

The principal law governing sexual offences is the Penal Code of Sri Lanka. Several other legal instruments also play a role in protecting victims and prosecuting offenders.

1. Penal Code of Sri Lanka

The principal law governing sexual offences in Sri Lanka is the Penal Code of Sri Lanka. This law defines various sexual offences and prescribes punishments for those who commit such crimes. Offences such as rape, grave sexual abuse, sexual harassment, incest, and offences against children are clearly described under different sections of the Penal Code. The law also explains the legal elements required to prove these crimes in court. Amendments to the Penal Code have strengthened protections for women and children and introduced stricter penalties for offenders. Therefore, the Penal Code acts as the primary legal framework for investigating, prosecuting, and punishing sexual offences in Sri Lanka. (Super-Admin, 2025)

2. Evidence Ordinance of Sri Lanka

The Evidence Ordinance of Sri Lanka plays an important role in sexual offence cases because it regulates how evidence is presented and evaluated in court. This law determines the admissibility, reliability, and relevance of evidence during legal proceedings. In sexual offence cases, the Evidence Ordinance provides guidelines on matters such as witness testimony, medical evidence, and documentary proof. It also includes special provisions to protect victims, particularly in cases involving children or vulnerable individuals. Proper application of this law helps ensure that justice is delivered based on credible and legally acceptable evidence.

3. Prevention of Domestic Violence Act No. 34 of 2005

The Prevention of Domestic Violence Act No. 34 of 2005 was enacted to provide protection for individuals who experience violence within domestic relationships. Domestic violence may include physical, emotional, and sexual abuse occurring within families or intimate relationships. This Act allows victims to seek protection orders from the courts to prevent further abuse. It also provides legal remedies that help safeguard victims from continued violence. Although this law

mainly focuses on domestic violence, it is also relevant in cases where sexual abuse occurs within a household or marital relationship. (Prevention of Domestic Violence, n.d.)

4. Convention on the Rights of the Child (CRC)

Sri Lanka is a signatory to the Convention on the Rights of the Child (CRC), an international agreement aimed at protecting the rights and welfare of children. By ratifying this convention, Sri Lanka has committed to safeguarding children from all forms of exploitation, abuse, and neglect, including sexual abuse. The CRC emphasizes the responsibility of governments to enact laws, implement policies, and establish institutions that ensure the protection and wellbeing of children. It also promotes the child's right to dignity, safety, and justice when they become victims of abuse.

5. Children and Young Persons Ordinance

The Children and Young Persons Ordinance provide legal protection specifically for children and young persons. This law aims to safeguard minors from neglect, abuse, and exploitation. In relation to sexual offences, the ordinance supports mechanisms that ensure children are protected during investigations and court proceedings. It also focuses on the welfare, care, and rehabilitation of children who become victims of abuse. By providing legal safeguards and protective measures, this ordinance helps strengthen the overall child protection framework in Sri Lanka.

Rape

Under the Penal Code of Sri Lanka, rape is legally defined as sexual intercourse committed with a woman under several unlawful circumstances. These include situations where the act is carried out without the woman's consent, against her will, or when consent is obtained through fear, threats, coercion, or intimidation. The law also recognizes statutory rape, which occurs when sexual intercourse takes place with a girl under the age of 16 years, even if she appears to have given consent, because a minor is legally incapable of giving valid consent. This definition highlights the importance the law places on protecting bodily autonomy and safeguarding

vulnerable individuals, particularly children. In Sri Lanka, rape is considered a serious criminal offence and is punishable by rigorous imprisonment, which requires the offender to serve a strict prison sentence involving hard labor. In addition to imprisonment, the court may impose fines and order compensation to be paid to the victim as a form of legal remedy for the harm suffered. The severity of punishment may vary depending on the circumstances of the offence, such as the age of the victim, the level of violence involved, and whether the offender abused a position of trust or authority. When the victim is under 16 years of age, the offence is treated as particularly grave, and the law provides much harsher penalties in order to protect children and deter such crimes. These strict legal provisions reflect the commitment of Sri Lankan law to punish offenders, protect victims, and uphold justice in cases of sexual violence.

Child Rape Case – Seya Sadewmi (Kotadeniyawa Case, 2015)

Another tragic case involved Seya Sadewmi, a four-year-old child from Kotadeniyawa.

Case Summary

The child went missing in September 2015 and was later found murdered near her home. Investigations revealed that she had been sexually assaulted before being killed.

Legal Outcome

After extensive investigation by the Sri Lanka Police, a suspect was arrested and later convicted in court.

Importance in Law

1. This case exposed several issues:
2. Weaknesses in criminal investigations
3. Public pressure during criminal cases
4. The importance of DNA evidence

It also strengthened discussions about child protection laws in Sri Lanka.

Statutory Rape

Statutory rape is a serious sexual offence recognized under the Penal Code of Sri Lanka. It occurs when a person engages in sexual intercourse with a girl who is under the age of 16 years, regardless of whether the girl appears to give consent or agrees to the act. According to the law, individuals below this age are considered minors and are not legally capable of giving valid consent to sexual activity. This legal principle is established to protect children and young persons from sexual exploitation, manipulation, and abuse by older individuals. Therefore, even if the girl does not resist or voluntarily participates, the act is still treated as a criminal offence because the law assumes that a child may not fully understand the consequences or may be influenced by pressure, fear, or emotional dependence. Statutory rape provisions emphasize the responsibility of adults to avoid engaging in sexual relationships with minors and ensure that children are safeguarded from harm. As a result, anyone found guilty of committing statutory rape can face severe legal consequences, including imprisonment and other penalties determined by the court, reflecting the strong protection provided to minors under Sri Lankan law.

Rape of a Foreign Tourist – Tangalle Case (2011)

A well-known international case occurred in Tangalle involving foreign tourists.

Case Summary

In December 2011, a British tourist Khuram Shaikh was murdered during a violent attack at a hotel party. His Russian partner was sexually assaulted during the same incident.

Legal Outcome

After a controversial legal process, several suspects including a local politician were convicted by the High Court of Colombo and sentenced to long prison terms.

Significance

1. The case drew international attention and raised concerns about:
2. Tourist safety in Sri Lanka
3. Political influence in criminal cases

4. Protection of women from sexual violence

Grave Sexual Abuse

Grave sexual abuse is a serious sexual offence recognized under the Penal Code of Sri Lanka. It refers to severe forms of sexual misconduct that violate a person's bodily integrity but do not legally amount to rape. This offence involves any act of a sexual nature that is committed without the consent of the victim or through force, threats, intimidation, or coercion. Grave sexual abuse may occur in various forms and can affect both adults and children. Examples of such acts include forced sexual touching of intimate parts of the body, the insertion of objects or body parts into another person's body without consent, and other sexual acts that do not involve sexual intercourse but still cause sexual violation and humiliation to the victim. The law recognizes that these acts can cause significant physical, emotional, and psychological harm to the victim even though they do not meet the legal definition of rape. Therefore, grave sexual abuse is treated as a serious criminal offence, and individuals who commit such acts can face severe punishments, including imprisonment, fines, and possible compensation to the victim. These legal provisions are designed to protect individuals from sexual exploitation and to ensure that any form of serious sexual violation is punishable under Sri Lankan law.

Grave Sexual Abuse Case – School Teacher Abuse Case

Several reported cases in Sri Lanka involve teachers sexually abusing students, which fall under grave sexual abuse under the Penal Code of Sri Lanka.

Example Case

In 2021, a tuition teacher in Kurunegala was arrested after parents complained that he had sexually abused a 13-year-old student during private lessons.

Legal Action

The suspect was arrested and charged under grave sexual abuse provisions.

Importance

These cases highlight the vulnerability of children in educational settings and the importance of parental supervision.

Sexual harassment

Sexual harassment is recognized as an offence under the Penal Code of Sri Lanka, and it refers to any unwelcome sexual advances, gestures, words, or behavior that cause humiliation, intimidation, or discomfort to another person. Such behaviors violate a person's dignity and personal freedom and can occur in different environments such as workplaces, educational institutions, public places, or even within social relationships. Sexual harassment may take several forms. For example, it can include verbal sexual remarks, such as making inappropriate comments, jokes, or suggestions of a sexual nature that make the victim feel uncomfortable or embarrassed. It can also involve physical harassment, where a person intentionally invades another individual's personal space in a sexual manner. Another common form is unwanted touching, which may include touching parts of a person's body without permission or consent. Even if the act does not lead to physical injury, it can still cause serious emotional distress, fear, and psychological harm to the victim. The law recognizes the harmful impact of such conduct and therefore provides legal measures to punish offenders and protect victims. Individuals found guilty of sexual harassment may face criminal penalties, including fines or imprisonment, depending on the severity of the offence. These legal provisions aim to promote a safe and respectful environment in society and discourage behaviour that undermines the dignity and rights of others.

Sexual Harassment Case – Workplace Harassment

Sexual harassment cases have also been reported in workplaces across

Sri Lanka. Example Case

In 2018, a female employee filed a complaint against her manager in a private company in

Colombo for repeated sexual comments and unwanted physical contact.

Legal Action

The case was investigated and the suspect was prosecuted under sexual harassment laws in the Penal Code of Sri Lanka.

Significance

1. The case raised awareness about:
2. Workplace harassment
3. Gender equality

Incest

Incest is a serious sexual offence recognized under the Penal Code of Sri Lanka. It refers to sexual relations between close family members who are legally prohibited from marrying each other due to their blood relationship. Such relationships are considered illegal because they violate social, moral, and legal norms and can cause serious psychological, emotional, and social harm to the individuals involved, especially when minors are affected. Incest usually occurs within the family environment, where there may be an abuse of trust, authority, or dependency. Common examples of incest include sexual relations between a parent and child, relationships between siblings, and sexual relationships between an uncle and a niece or an aunt and a nephew. In many cases, these acts involve coercion, manipulation, or exploitation of a vulnerable family member, particularly children who may not fully understand the nature or consequences of the act. Because of the seriousness of such offences and the potential harm caused to victims and family structures, the law treats incest as a criminal offence and imposes strict punishments on offenders, which may include imprisonment and other legal penalties. These legal provisions aim to protect vulnerable individuals within families and to prevent abuse of power and trust in close familial relationships.

Incest Case – Father and Daughter Abuse Case

Incest cases are often reported in Sri Lankan courts but many victims remain anonymous due to privacy laws.

Example Case

In 2020, the High Court of Anuradhapura sentenced a father to 20 years imprisonment after he was found guilty of repeatedly sexually abusing his teenage daughter.

Significance

The case emphasized:

1. Psychological trauma experienced by victims
2. The importance of social services and counseling
3. The need for stronger child protection mechanisms

Unnatural Offences

Unnatural offences are offences described under the Penal Code of Sri Lanka, which historically referred to certain sexual acts that were considered "against the order of nature." These provisions were introduced during the colonial period and criminalized specific sexual behaviors that did not conform to traditional views of sexual relations. Under these sections of the Penal Code, certain sexual acts between individuals were categorized as unnatural offences and were punishable by law. The intention of these provisions was originally to regulate sexual conduct according to the moral and social standards that existed at the time the law was enacted. However, in recent years, these laws have become the subject of significant legal, social, and human rights debates both within Sri Lanka and internationally. Critics argue that such provisions may conflict with modern human rights principles, including the rights to privacy, equality, and non-discrimination. As a result, many legal scholars, activists, and human rights organizations have called for reforms or reconsideration of these laws in order to align them with contemporary human rights standards. Therefore, while the provisions relating to unnatural offences remain part of the legal framework of Sri Lanka, they continue to be widely discussed and debated in the context of human rights, social change, and legal reform.

Sexual Offences Against Children

Children are particularly vulnerable to sexual exploitation, and Sri Lankan law provides strict legal protections to safeguard them from such offences. Sexual crimes against children include a range of serious acts, such as child sexual abuse, which involves any sexual activity imposed on a minor without consent; child pornography, which refers to creating, distributing, or possessing sexually explicit images or videos of children; sexual exploitation, where a child is coerced or manipulated into sexual activity for the benefit of another person; and child trafficking, which often involves transporting or recruiting children for sexual purposes. Recognizing the heightened vulnerability of minors, Sri Lanka has enacted specific legal provisions under the Children and Young Persons Ordinance and the Penal Code to ensure that offenders face severe penalties, including imprisonment, fines, and mandatory rehabilitation measures for victims. In addition to domestic laws, Sri Lanka is a signatory to the United Nations Convention on the Rights of the Child, which obligates the country to protect children from all forms of sexual exploitation and abuse, promote their welfare, and uphold their rights to safety, dignity, and justice. These legal and international frameworks collectively aim to provide comprehensive protection to children, deter potential offenders, and ensure that victims receive both legal redress and social support.

Role of Forensic Medicine in Sexual Offences

Forensic medicine plays a vital role in the investigation of sexual offences by ensuring that medical evidence is accurately identified, collected, and preserved. The examination of the victim is one of the most important responsibilities, as it helps to assess both physical and psychological trauma. During this process, forensic practitioners carefully collect biological samples such as semen, blood, and hair for DNA analysis, which can be crucial. In addition, all visible injuries are thoroughly documented, including their type, location, and severity, as this information can support or refute allegations of assault. Age estimation may also be required in certain cases, especially when the victim's age is in question, as this has direct legal implications under statutory rape laws.

Furthermore, forensic medical officers are responsible for preparing detailed medico-legal reports that are used as key evidence in court proceedings. These reports must be clear, objective, and based on scientific findings. In many cases, forensic experts are also required to provide expert testimony in court, explaining medical evidence in a manner that can be understood by judges and lawyers. This helps the court to make informed decisions regarding the case. Hospitals and forensic units work closely with law enforcement agencies such as the Sri Lanka Police to ensure proper investigation and justice for victims, highlighting the importance of a coordinated approach in handling sexual offence cases.

Prevention and Legal Reforms

To reduce sexual offences, Sri Lanka has implemented several important measures focusing on both prevention and legal control. Strengthening legal provisions under the Penal Code of Sri Lanka has helped impose stricter punishments on offenders and improve the protection of victims, especially women and children. In addition, awareness programs on sexual violence are conducted through schools, media, and community initiatives to educate the public about consent, personal safety, and the importance of reporting abuse. The government has also established specialized child protection units and support services to ensure that victims receive proper care, counseling, and legal assistance.

Furthermore, promoting gender equality has become a key strategy in addressing the root causes of sexual violence, as it helps challenge harmful social attitudes and discrimination. Organizations such as the National Child Protection Authority play a crucial role in safeguarding children by investigating abuse cases, providing protection services, and raising awareness nationwide. Through collaboration with institutions like the Sri Lanka Police, these efforts contribute to a more coordinated and effective response to sexual offences, ultimately aiming to create a safer society.

Conclusion

Sexual offences are serious crimes that result in profound physical, psychological, and social consequences for victims. These offences not only violate an individual's bodily integrity but also cause long-term emotional trauma, stigma, and disruption to social relationships. Victims often experience fear, anxiety, depression, and a loss of trust, which can affect their overall quality of life. Therefore, addressing sexual offences is not only a legal responsibility but also a social and public health priority.

In Sri Lanka, a comprehensive legal framework has been established to address such offences, mainly through the Penal Code of Sri Lanka and other related laws. These legal provisions define various sexual offences, prescribe punishments, and offer protection to victims, especially women and children. Amendments to the law over the years have strengthened the legal response to sexual violence and improved safeguards against abuse and exploitation.

However, the effectiveness of these laws depends on proper enforcement and coordination among different sectors. The legal system, medical professionals, and law enforcement agencies such as the Sri Lanka Police must work together to ensure that cases are properly investigated and prosecuted. Forensic medical examinations, accurate documentation, and timely collection of evidence play a crucial role in supporting legal proceedings and ensuring justice for victims.

Furthermore, preventing sexual offences requires a broader approach that includes increasing public awareness, improving forensic investigation systems, and providing adequate support services for victims. Education on consent, gender equality, and personal safety can help reduce the occurrence of such crimes. Strengthening victim support mechanisms and ensuring access to counseling and legal assistance are essential steps in promoting justice and preventing future sexual offences in Sri Lanka.